

The Bihar Gramdan Rules, 1966

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State of Bihar - Act

The Bihar Gramdan Rules, 1966

BIHAR

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The Bihar Gramdan Rules, 1966

Rule THE-BIHAR-GRAMDAN-RULES-1966 of 1966

Published on 5 August 1966

Commenced on 5 August 1966

[This is the version of this document from 5 August 1966.]

[Note: The original publication document is not available and this content could not be verified.]

The Bihar Gramdan Rules, 1966

Published vide Notification No. 6455-LR-dated 5th August, 1966

1.

Short title.

- These Rules may be called the Bihar Gramdan Rules, 1966.

2.

Definitions.

- In these Rules unless there is anything repugnant in the subject or context,-

(a)

"Act" means the Bihar Gramdan Act, 1965;

(b)

["Declaration" means declaration filed under Section 7 of this Act;]

[Substituted by Notification No. 45-LR-132, dated 29th August, 1973.]

(c)

["Landless persons" with reference to clause (3) of Section 5 of the Act means persons having no land and include persons who have only homestead lands;]

[Substituted by Notification No. 95-LR-132, dated 29th August, 1973.]

(d)

"Form" means a form set out in the Schedule;

(e)

"Section" means of a Section of the Act;

(f)

"Schedule" means a Schedule appended to these Rules;

(ff)

["Gramdan Confirmation Officer" means person or persons to whom, the Chairman of the Bihar Bhoodan Yagna Committee, may by notification in the Official Gazette, delegate any or all of his powers and functions under this Act]

[Added by Notification No. 95-LR-132, dated 29th August, 1973.]

;

(g)

words and expression used in these Rules but not defined separately therein shall have the same meaning as are assigned to them in the Act.

3.

Filing and publication of declaration under Section 4.

- [(1) The owner or his natural guardian or legal guardian or his authorised agent, when the property is held jointly by several owners, or their natural or legal guardians or their authorised agents shall file the declaration "under Section 7 before the Chairman or the Gramdan Confirmation Officer in Form No. 1]

[Substituted by Notification No. 95-LR-132, dated 29th August, 1973.]

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(2)

The Chairman or the person authorised by him in this behalf shall sign the slip attached to the declaration.

(3)

Every declaration received by the Chairman or persons authorised by him shall be entered in the Register in Form II, and declarations appertaining to one revenue village shall be entered in the register at one place.

(4)

The Chairman shall, within a month of the receipt of the declaration, publish a copy of the same along with a notice in Form III by affixing it at a conspicuous place in a village to which it relates and in the office of the Gram Panchayat, if any, within whose local limits the donated land is situated. Copies of such notice shall also be served on the donors.

(5)

Any objection filed in pursuance of such notice shall be filed within thirty days of the publication and shall be in writing and in duplicate.

4.

Declaration under Section 5.

(1)

The declaration under Section 5 shall be filed in Form IV.

(2)

Every such declaration shall be entered in the register in Form V.

(3)

Sub-rules (1) to (5) of Rule 3 shall apply to a declaration filed under this Rule in the same manner as they apply to a declaration filed under Section 4.

5.

Disposal of Objections.

- The Chairman shall enter every objections filed under sub-section (3) of Section 4 and sub-section (2) of Section 5 in

the register in Form No. VI and fix a date for its hearing of which notices in Form VII shall be given to the persons concerned.

6.

Declaration of village as Gramdan Village under Section 6.

(1)

After the declarations under Section 4 and 5 have been disposed of, the Chairman shall prepare a statement in Form VIII of the villages or tolas proposed to be declared as Gramdan Village.

(2)

In determining the population of a village or a tola, the Chairman may either rely upon the Panchayat Register or the last census report or get the population determined afresh with the help of the Revenue Officers of the area and the Gram Panchayat:

Provided that in computing the number of persons in respect of whom the declaration have been confirmed as laid down in sub-section (1) of Section 6, the number of dependants of the declarants shall also be taken into account.

(3)

A copy of the statement in Form VI shall be sent to the Collector of the district, the Anchal Adhikari, the Gram Panchayat concerned and the Bihar Bhoodan yagna Committee established under Section 3 of the Bihar Bhoodan Yagna Act, 1954, (Bihar Act XXII of 1954) or to any other person or authority as the Chairman deems necessary, inviting objections or suggestions, if any, for the correction of the aforesaid statement within thirty days of the receipt of such statement.

(4)

On receipt of objections, if any the Chairman shall, either make an enquiry in the matter himself or through any other person authorised by him in this behalf and make such corrections, if any, in the statement as he may consider necessary.

(5)

If after such enquiry the Chairman is satisfied that the village or part of the village is entitled to be declared as Gramdan Village under Section 6, he shall, by a notification in the Official Gazette in Form IX, declare the village to be a Gramdan Village.

(6)

A copy of the notification under sub-rule (5) shall be displayed in a prominent place in the village, the Collectorate, the Anchal Office and the Office of the Gram Panchayat concerned.

(7)

If the Chairman is satisfied that the village is not qualified to be declared a Gramdan Village, he shall allow three months time for filing fresh declarations under Sections 4 and 5 and even after disposal of the such declarations, the Chairman is satisfied that the village is not qualified to be declared a Gramdan Village, he shall pass orders as such in Form X which shall be published in the Official Gazette as soon as possible.

7.

Mode of Service of notice or order.

(1)

Unless otherwise provided in the Act, any notice or order required to be served under the provisions of the Act, shall be served by delivering or tendering a copy thereof duly signed and sealed, to the person on whom it is to be served or to his duly authorised agent.

(2)

Where the person on whom the notice or order is to be served cannot be found and where such person has no agent empowered to accept service of notice or order on his behalf, service may be made on any adult member of the family of such person residing with him.

(3)

Where the serving officer delivers or tenders a copy of the notice or order to the person to be served with such notice or order personally or to an agent or other person on his behalf, he shall require the signature of the person to whom the copy is so delivered or tendered to an acknowledgement of service to be endorsed on the original notice or order.

(4)

Where the person to be served with notice or order or his agent or such other person as aforesaid refuses to sign the acknowledgement, or where the serving officer after using all due and reasonable diligence cannot find the person to be

served with the notice or order and there is no agent empowered to accept service of notice or order on his behalf, or any other person on whom service can be made, service may be made by affixing a copy of the notice or order on the outer door or some other conspicuous part of the house in which the person to be served with the notice or order ordinarily resides or carries on business or personally works.

(5)

The Serving Officer shall in all cases in which the notice or order has been served under this sub-rule, endorse or annex or cause to be endorsed or annexed, on or to the original notice or order return stating the date on which and the manner in which the notice or order was served and the names and address of two persons witnessing the service.

(6)

Notwithstanding anything contained in the foregoing sub-rules, the authority issuing the notice or order may, if it thinks fit, order that the notice or order shall be served by sending a copy thereof, duly signed and sealed by registered post with acknowledgement due to the person on whom such notice or order is to be served and the posting of the notice or order shall be sufficient proof of the service of such notice or order on the person concerned.

(7)

Where the person to be served with a notice or order under the Act is a minor or a person of unsound mind, the service shall be made in the aforesaid manner on the guardian of such minor or person of unsound mind, as the case may be.

(8)

Unless otherwise provided in the Act or the Rules any general or public notice or order required to be served under the provisions of the Act or the Rules shall be served by affixing a copy of it in the presence of not less than two persons at some conspicuous public place where the property concerned is situated. The publication of the notice shall be announced by the beat of drum in the place where it is published.

The serving officer shall in such case endorse or annex, or cause to be endorsed or annexed or to the original notice a return stating the date on which, and the manner in which the notice was published and the names and addresses of the two persons witnessing the publication.

8.

Manner of enquiry by the Chairman.

- On the date fixed for hearing, or on any adjourned date, the Chairman shall, after hearing the declarant and the objector, and after taking into consideration such evidence as may be adduced and after making such further enquiry as may be deemed necessary, either confirm or refuse to confirm the declaration.

9.

Order confirming the declaration.

- The Order confirming the declaration shall clearly specify the survey plot number of the land and the area and boundary of part of the plot if any, the name of the village and thana number.

10.

Registration of part of a village as a separate revenue village.

(1)

Where a part of revenue village has been declared to be a Gramdan Village, the Gram Sabha of the Gramdan Village shall file an application before the Collector of the district in Form XI.

(2)

On receipt of such application, the Collector shall make an enquiry in the matter through any other person or himself.

(3)

If after such enquiry the Collector is satisfied that the part of the revenue village should be separated from the rest of the revenue village, he shall by notification in the Official Gazette, declare that part as a separate revenue village and register it accordingly.

(4)

The common lands of the original revenue village shall be apportioned as far as possible, proportionately according to areas of the two parts of the divided villages in such a manner as to provide for their continuity to the particular part of the village.

11.

The rate of collection charges for the recovery of land revenue.

- The rate of collection charges for the recovery of land revenue and the time and manner of remitting the same shall be

fixed by State Government in consultation with the Chirman, Bhoodan Yagna Committee and shall generally be on the line allowed to a Gram Panchayat.

12.

Terminating the interest of Gramdan Kisan under Section 18 (1).

(1)

If any Gramdan Kisan violates any of the conditions laid down in sub-section (1) of Section 18 the Gram Sabha concerned may file an application in Form XII before the Anchal Adhikari of the Anchal for terminating the interest of the Gramdan Kisan over the land and if he is in possession thereof, for his eviction therefrom.

(2)

On receipt of the application, the Anchal Adhikari shall issue notices to the Gramdan Kisan and the Gram Sabha and after hearing them and after making such enquiry as he deems fit, pass necessary order on the application.

(3)

If the Anchal Adhikari pass an order of eviction, he shall give possession of such lands to the Gram Sabha after ejecting the Gramdan Kisan or any other person found to be in unlawful possession thereof by use of such force for the purpose as he may consider necessary.

(4)

The Anchal Adhikari may, instead of terminating the interest of the Gramdan Kisan or ordering his eviction order the Gram Sabha to take over management of such land for a period to be specified in the order.

(5)

Details of all such temporarily managed lands shall be entered in a register maintained in Form No. XIII.

(6)

The Anchal Adhikari may also fix a date by which the Gramdan Kisan or the person in possession of the land shall hand over management to Gram Sabha. If, the Gramdan Kisan or the person in possession of the land does not hand over management of the land by the date, the Anchal Adhikari may eject the Gramdan Kisan or the person in possession by use of such force for that purpose as he may consider necessary. The Gram Sabha shall restore the possession of the land to the Gramdan Kisan or his heir or successor-in-interest after the said period.

(7)

The Gram Sabha shall cultivate the lands made over to it for management, either through its own men or through any other person. The Gram Sabha shall maintain complete accounts of the expenditure incurred and incomes derived from such lands for each quarter of the agricultural year, if the lands are cultivated by its own men; in any other case, the person entrusted with the actual cultivation of land shall maintain an account of all expenditure incurred over the cultivation of such lands and income derive therefrom, and render complete accounts to the Gram Sabha for each quarter of the agricultural year, within a month of the preceding quarter to which the accounts relates.

(8)

The surplus income, if any after making deductions as mentioned in subsection (4) of Section 18, shall be paid to the Gramdan Kisan, in cash or kind, soon after the accounts as finally prepared by the Gram Sabha or rendered by the person to whom the cultivation had been entrusted.

13.

Landless person under Section 20.

- For the purposes of Section 20, the expression "landless person" shall have the same meaning as defined in clause (gha) or Rule 2 of the Bihar Bhoodan Yagna Regulations, framed under Section 24 of the Bihar Bhoodan Yagna Act, 1954 (Bihar Act XXII of 1954).

14.

Eviction of allottees.

(1)

If any allottee of land contravenes the provision of clause (b) of sub-section (2) of Section 20, or fails to pay any dues in respect of any land allotted to him the Gram Sabha may make an application under Section 24 before the Anchal Adhikari of the Anchal in Form XIV for cancelling the allotment.

(2)

On receipt of the application, the Anchal Adhikari shall issue notice to the allottee and the Gram Sabha and after hearing them and after making such enquiry as he deems fit, pass necessary orders on the application.

(3)

If the Anchal Adhikari passes an order cancelling the allotment and restoring possession of the land to the Gram Sabha, he shall give possession of such land to the Gram Sabha after ejecting the allottee or any other person found in possession thereof by use of such force, for the purpose, as he may consider necessary.

(4)

The Anchal Adhikari may, instead of cancelling the allotment and restoring the possession of the land to the Gram Sabha, order the Gram Sabha to take over management of such land for a period to be specified in the order and also fix a date by which the Gram Sabha shall assume the management of the land. If the allottee or any other person in possession of the land does not hand over management of the land by the specified date, the Anchal Adhikari may eject the allottee or any other person in possession by use of such force for the purpose as he may consider necessary. The Gram Sabha shall restore the possession of the land to the allottee after the said period.

(5)

Details of all such temporarily managed lands shall be entered in Register maintained in Form XIII.

(6)

The Gram Sabha shall manage the land and pay the allottee the surplus income, if any, derived from the land in accordance with the provisions of sub-rules (7) and (8) of Rule 12.

15.

(1)

From an order passed under the Act, an appeal shall lie, when the order was made,-

(a)

by the person, to whom the powers and functions of the Chairman, have been delegated under the Act to the Collector if the order was passed under the provisions of Section 4, 5, 23 and 6;

(b)

by the Chairman, to the Gramdan Commissioner notified as such by the State Government, if the order was passed under the provisions of the Act, as mentioned in clause (a) of sub-rule (a);

(c)

by the Anchal Adhikari, to the Collector or any officer not below the rank of a Deputy Collector, specially empowered in this behalf, if the order was passed under Sections 18 and 24 of the Act.

(2)

Subject to the order of the Board of Revenue in Revision, the appellate order of the Collector and the Gramdan Commissioner shall be final.

(3)

No appeal shall lie if preferred after 30 days of the date of the order applied against.

(4)

A register of appeals shall be maintained in Form XV.

16.

Procedure for hearing appeal.

- The procedure to be followed by the Appellate Authority in disposing of appeals shall as far as possible, be the same as provided for Civil Appeals under Order XLI of the Code of Civil Procedure, 1908 (Act V of 1908).

17.

Fees.

- Fee payable in respect of application and appeals under this Act shall be governed by the Court Fees Act, 7 of 1870.

18.

Contribution to the Gram Sabha.

- The Gram Sabha may decide by taking consensus of opinion about the time within which and the manner in which periodical contributions shall be made and in taking a decision about the time for receiving contributions, it shall keep in view, the period of harvesting of the principal crops of the area and convenience of the local people.

(2)

A Register of contribution shall be maintained in Form XVI.

19.

[Register of Members.

[Substituted by Notification No. G.S.R. 132 dated 29th August, 1973.]

- The Register of members may be prepared initially in Form No. XVII by the Gramdan Confirmation Officer. The register so prepared shall be revised at the end of every year by the Secretary of the Gram Sabha]

20.

Election of the President of the Gram Sabha.

(1)

The Gram Sabha, presided over by a nominee of the Chairman, shall, on a date to be fixed by the Chairman, of which due notice shall be given to the Gram Sabha, proceed to elect its President.

(2)

On the date so fixed the presiding officer shall assess the consensus of opinion of the Gram Sabha and shall, if possible, get the President elected without any contest.

(3)

If the presiding officer fails to get a President elected unanimously, he shall adjourn the meeting for fifteen days and in the meantime, shall try to form public opinion in favour of an unanimous election, if, again on the adjourned date an unanimous election of the President is not possible, he may declare one of the candidates elected on the basis of the general consensus in favour of that candidate.

(4)

In case it is not possible to ascertain the general consensus in favour of a particular candidate, one of them may be elected as a President by drawing a lot.

(5)

The Gram Sabha shall maintain a Proceeding Book in which proceedings of all the meetings shall be recorded and duly signed by the President of the meeting.

21.

Gram Sabha Adalat.

(1)

The Gram Sabha shall elect five persons to be the members of the Gram Sabha Adalat and these members shall elect a Sarpanch from among themselves to preside over the Adalat and to discharge the powers and functions under the Act.

(2)

The term of office of the Sarpanch and other members shall be three years from the date of their elections and for such further period as may elapse till the establishment of a new Gram Sabha Adalat.

22.

Register of Gram Sabha Adalat.

- The Gram Sabha Adalat shall maintain a Register of Civil Suits and miscellaneous cases in Form Nos. XVIII and XIX respectively.

23.

Borrowing moneys by a Gram Sabha and borrowing limits.

- A Gram Sabha may borrow money from Scheduled Banks, Central Co-operative Bank of the Area or from Government Agencies to the extent of the rupees one hundred per family or an amount equal to ten times of the Gram Nidhi:

Provided, that the State Government may, on an application from the Gram Sabha and after such enquiry as may be considered necessary, increase or decrease this limit.

24.

Application and Administration of Gram Nidhi.

(1)

The Gram Nidhi shall be deposited in the Postal Savings Bank, Central Co-Operative Bank or any Scheduled Bank, of the area, withdrawals from which can be made on the joint, signature of the President of the Gram Sabha and one of the members of the Executive Committee, duly empowered for the purpose by a resolution of the said Committee.

(2)

The Gram Nidhi may be applicable to the following objects namely,-

(a)

to granting loans to a Gramdan Kisan or any other member of the Gram Sabha;

(b)

to effecting improvements to the area, like construction of bunds, dykes, etc., cost of which to be realised ultimately from the beneficiaries;

(c)

to arranging for the maintenance of destitute children and old and infirm persons in the village;

(d)

to taking up schemes for providing employment to the unemployed members of the Gram Sabha;

(e)

to any other purpose which the Gram Sabha considers necessary, if it has been approved by the Chairman.

(3)

Subject to such directions as the State Government or the Chairman, may give from time to time, the Gram Sabha shall decide the terms and conditions of application and investment of the Gram Nidhi.

(4)

The account of receipt and expenditure will be maintained in Form No. XX.

25.

[Amalgamation of Gram Sabha.

[Added by Notification No. G.S.R. 132 dated 29th August, 1973.]

- If two or more Gram Sabhas want to amalgamate wholly or partially, they will send their proposals in Form No. 21 to the concerned Gramdan Confirmation Officer. The Gramdan Confirmation Officer after making necessary enquiry which he deems fit may pass orders for amalgamation and intimate the same to the concerned Offices].

Schedule

[Form I]

[Form I substituted vide Notification No. 132 dated 29th August, 1973.]

(Declaration under Section 7)

[See Rule 3(1)]

On understanding theory of Gramdan, initiated by Acharya Vinoba Bhave, I/we in accordance with provisions of the Bihar Gramdan Act.....Name of father or husband.....resident of village.....Thana No,..... Anchal.....district.....do hereby declare on behalf of myself and other natural guardian or authorised agent that, I or we donate not less than 1/20th of land situated in this village and shall make periodic contribution of 1/40th of produce of the remaining land, I or we shall make periodic contribution of 1/30 of salary or wage to Gram Sabha.

We have faith in unanimous decision of Gram Sabha.

Annexure 'A'

Area of Total Land (Excluding Homestead Land)

Detail of land to be donated to Gram Sabha, not less than 1/20 of total land excluding homestead land

Sl.

Khata No.

Khesra No.

Area

Remakrs

Annexure 'B'

Total Number of Dependents in Family and Their Relations

Sl. No.

Name of dependent

Name of Father or husband

Age

Relation

Remarks

Receipt..... received Declaration Forms under Section 7 of the Act

Signature of Receiving Officer and date.

N.B.-If any Declaration Form has been filed under Rules 5 and 6 of Bihar Gramdan Rules, 1966, they would be deemed to be filed under Section 7 of the Amended Act.

Form II

Register of declaration filed under Section 4

[See Rule 3 (3)]

Village.....Anchal.....District.....

Serial No.

Date of presentation

By whom presented

Name and address of the donor (s)

Date of issue of notice

Date of Service of notice

Name and address of the objector (s)

Substance of order or objection (s) with date

Remarks

1

2

3

4

5

6

7

8

9

Form III

Notice of declaration under Section 4

[See Rule 3(4)]

For publication at village.....Thana no.....Anchal.....District.....

It is hereby published for general information that Sri/Shrimatison/daughter/wife of..... resident of village.....Anchal District.....has donated his lands as per details given in Annexure-A of the declaration of Form I, annexed herewith.

All persons interested in the said lands are requested to submit their objection before the undersigned within thirty days of the date of publication of the notice.

Signature.....

Published on.....

Designation.....

Location of Office.....

Form IV

Declaration under Section 5

[See Rule 4 (1)]

I/We.....son/daughter/wife of of village.....Thana no.....Anchal.....District.....on behalf of self/or and.....as authorised/guardian authorised agent of.....son/daughter/wife of.....hereby declare that

I/we shall join the Gramdan of the village and make a periodic contribution of the thirtieth of my/our income according to Rule 18 as for community purposes. I/we have.....only homestead land and come within the definition of persons having no land under Rule 2 (c).

The total number of dependants under me/us is.....as per list given in Annexure A.

Signature with date.....

Annexure-A

Serial No.

Name of dependant

Name of father or husband

Age

Relationship

Remarks

- 1
- 2
- 3
- 4
- 5
- 6

Receipt

Received from..... this form of declaration under Section 5 of the Act.

Signature of Receiving Officer with date.

Form V

Register of declaration filed under Section 5

[See Rules 4 (2)]

Village.....Anchal.....District.....

Serial No.

Date of presentation

By whom presented

Name and address of the donor (s)

Date of issue of notice

Date of Service of notice

Name and address of the objector(s)

Substance of order or objection(s) with date

Remarks

- 1
- 2
- 3
- 4
- 5
- 6
- 7
- 8
- 9

Form VI

Register of objection filed before the Chairman

(See Rule 5)

Serial No.

Date of filing the objection (s)

Serial No. and date of the declaration to which
the objection (s) relates

Name and address of the objection (s)

Substance of objector (s)

Date of issue of notice under Section 4(3)

Date of service of the notice

Substance of order with date on the objection (s)

Remarks

- 1
- 2
- 3
- 4
- 5

6
7
8
9

Form VII

Notice for hearing objection under Section 4(3)

(See Rule 5)

To whomsoever it may concern

Whereas Sri/Srimati.....son/daughter/wife of.....resident of village..... Thana No.....Anchal.....District.....has donated the lands described below by way of Gramdan under Section 4 of the Act has filed a declaration under Section 5 of the Act.

And whereas Sri/Srimati.....resident of village.....Thana No.....Anchal.....District.....has filed objection against the aforesaid donation declaration which will be heard onat.....

It is, therefore, notified for general information that any person interested may attend the hearing on the said date, time and place with such evidence as he may like to produce in support of his claim or objection as the case may be.

Take notice that in default of appearance on the day aforesaid the objection will be heard and disposed of ex-parte.

Description of Land

Name of village, thana No., Anchal in which the donated land are situated

Class of lands

Plot Nos. with Khata Nos

Area of land

Remarks note details of lease interest, if

Government land, possession, etc.

1
2
3
4
5

Form VIII

Declaration of village as Gramdan Village

[See Rule 6(1)]

(1)

Name of village/Tola

(2)

Anchal

(3)

Thana No.

(4)

District

(5)

Total area of village/Tola(according to Survey records).

(6)

Total area of land held by owners [vide Section 2 (n)]

(7)

Total number of persons in the village

(8)

Number of declaration filed under Section 4

(9)

Area covered by the declarations filed.

(10)

Number of declarations confirmed under Section 4

(11)

Total area in respect of which declarations confirmed under Section 4

(12)

Percentage of total area in respect of which declarations confirmed (10) to total area of land held by owners (6)

(13)

Number of declarations filed under Section 5

(14)

Number of declarations confirmed under Section 5

(15)

(a)

Number of person in respect of whom declarations confirmed under Section 4

(b)

Number of dependants of (a)

(c)

Number of persons in respect of whom declarations confirmed under Section 5

(d)

Number of dependants of (c)

Total

(16)

Percentage of the total number of persons in respect of whom declarations confirmed under Sections 4 and 5 to the total number of persons residing in the village

(17)

Remarks

The above statement is published for general information. Any person may file any objection or suggestion for the correction of the statement before the undersigned or his representative within one month of the date of its publication.

Signature with date.....

Form IX

Declaration of Gramdan Village

[See Rule 6 (5)]

Notification

In exercise of the powers conferred by Section 6 of the Bihar Gramdan Act, 1965 (Bihar Act IV of 1966) read with sub-rule (5) of Rule 5 of the Bihar Gramdan Rules, 1966, I.....Chairman, appointed under Section 4 of the Bihar Bhoodan Yagna Act, 1954 (Bihar Act XXII of 1954), do hereby declare Tola (part village).....of village.....Thana No.....Thana.....Anchal.....District.....bounded as follows:-

N-

S-

E-

W-

as a Gramdan village with effect from.....

Chairman

Signature with date.

Form X

Order passed by Chairman under Sections 4 and 5 of the Act

[See Rule 6(7)]

Whereas, after due enquiry and after giving reasonable time, I, Chairman, appointed under Section 4 of the Bihar Bhoodan Yagna Act, 1954 (Bihar Act XXII of 1954) am satisfied that the conditions mentioned in sub-section (1) of Section 6 of the Act are not satisfied in respect of Tola (part village).....Thana No.....Thana.....Anchal.....District.....bounded as follows:-

N-

S-
E-
W-

I, therefore, declare that the aforesaid village.....Tola (part village).....is not qualified to be a Gramdan village. Every declaration under Section 4 or Section 5 in respect of the village.....Tola (part village).....notwithstanding that it had been confirmed, hereby cease to have any effect.

Chairman

Signature with date

Form XI

Registration of part of village as a separate Revenue village

[See Rule 10(1)]

To,

The Collector,District.

Sir,

Whereas tola of village.....Thana No.....Thana.....
Anchal.....District.....bounded as follows:-

N-
S-
E-
W-

has been declared to be a Gramdan village under Section 6 of the Act.

It is requested that this part of the village may be separated from the rest of the Revenue village and registered as a separate Revenue village under Section of the Act.

President, Gram Sabha.

Form XII

Application for termination of interest and eviction of the Gramdan Kisan

[See Rule 12]]

To,

The Ahchal Adhikari,
.....Anchal.

Sir,

Whereas Sri/Srimati.....son/daughter/wife of.....who is a Gramdan Kisan of village.....Tola
Thana No.....Thana of the Anchal, has-

(i)

failed to pay to the Gram Sabha Rs.....being his contribution under clause (d) of sub-section (1) of Section 17.....and/or Rs.....his contribution under clause (f) of sub-section (1) of Section 17, and/or, (ii) has made a transfer of the lands as detailed below in Schedule-A contrary to the provision of clause (e) of sub-section (1) of Section 17 and/or, (iii) has failed to pay the sum of Rs.....due from him on account of encumbrance referred in sub-clause (ii) of clause (d) of Section 8.

It is, therefore, requested that the interest of the abovenamed Gramdan Kisan over the land as detailed below in Schedule B, may be terminated and he or any person in unlawful possession thereof may be evicted from the land.

President, Gram Sabha,

Gram/Tola

A

Details of land

B

Form XIII

Register of Temporarily Managed Lands

[See Rule 12 (5) and Rule 14(5)]

Village.....

Year.....

Serial No.

Name of Kishan/ allottee

Khata Nos. and Plot Nos. of land

Date of order for settlement

Name of settlee

Terms of settlement

Initials of the Officers

Remarks

1

2

3

4

5

6

7

8

Form XIV

Application for eviction of allottee

[See Rule 14(1)]

To,

The Anchal Adhikari,

.....Anchal.

Sir,

Whereas Shri/Srimati.....son/daughter/wife of.....an allottee of lands of Gramdan village.....Thana No....., of land Anchal has,-

(i)

contravened the provisions of clause (b) of sub-section (2) of Section 20 by transferring his interest in plot No •.....khata No.....area.....class.....of land of the Gramdan village allotted to him under Section 20, and/or

(ii)

has failed to pay dues amounting to Rs.....in respect of the land allotted to him.

It is, therefore, requested that the allotment may be cancelled and the allottee or any other person in possession of the land may be ejected therefrom.

President, Gram Sabha.

Form XV

Register of Appeals

[See Rule 15(4)]

Serial No.

Name of parties

Name and Office of Officer against whose decision

the appeal is made

Date of decision of lower Court

Date of institution of appeal

Date of order in appeal and by what Officer

assessed

Purport of order

Remarks

1

2

3

4

5

6

7

8

Form XVI

Register of Contributions

[See Rule 18(2)]

Year..... Village.....

Serial No.

Name of Kisan

Total demand

Instalments due

Amount paid

Amount

Date

Amount

Date

1

2

3

4

5

6

7

Form XVII

Register of Members of Gram Sabha

(See Rule 19)

Name of the village.....Thana

Sub-division.....District.....

Serial No.

Name of member

Father's or husband's name

Age

Occupation

Remarks

1

2

3

4

5

6

Form XVIII

Register of Civil Suits

(See Rule 22)

Sl. No.

Name of plaintiff and his address

Name of defendant and their address

Name of suit (state very briefly and its value)

Fee realised at the time of institution

Date of institution of the suit

Final orders of the bench with date

Remarks

- 1
- 2
- 3
- 4
- 5
- 6
- 7
- 8

Notifications

(i)

S.O. 570, dated the 9th May, 1974, published in Bihar Gazette Extraordinary dated the 9th May, 1974-In exercise of the powers conferred by Section 6 of the Bihar Gramdan Act, 1965 (Bihar Act IV of 1966) read with sub-rule (5) of Rule 6 of the Bihar Gramdan Rules, 1966, I, Khagendra Narain singh to whom the power has been delegated under the Bihar Gramdan Act, 1965 (Bihar Act IV of 1966) by the Chairman of the Bihar Bhoodan Yagna Committee appointed under Section 4 of Bihar Bhoodan Yagna Act, 1954 (Bihar Act XXII of 1954) do hereby declare the following villages Tolas (part of villages) described in column No. 3 appertaining to revenue village described in column No. 2 whose thana, Anchal and District are described in column No. 5 and boundary in column No. 6 of the Schedule hereto annexed as Gramdan village with effect from the.

Schedule 4

Sl. No.

Revenue village

Declared Gramdan village part of village

Thana No.

Full address

Boundary

Thana

Circle

District

- 1
- 2
- 3
- 4
- 5
- 6
- 1.
- 2.
- 3.
- 4.

Mathurapur

Mathurapur

361

Muzaffarpur Sadar

Musarhipur

Muzaffarpur

N.-Subhankarpur

S.-Patahi

E.-Patahi

W.-Bahora

(ii)

Notification No. S.O.209, dated the 6th February, 1975-Published in Gazette Extraordinary, dated 6th February, 1975.-In

exercise of the powers conferred by Section 6 of the Bihar Gramdan Act, 1965 (Bihar Act IV of 1966) read with sub-rule (5) of Rule 6 of the Bihar Gramdan Rules, 1966, I, Nehal Ahsan Ansari to whom the power has been delegated under the Bihar Gramdan Act, 1965 (Bihar Act IV of 1966) by the Chairman to the Bihar Bhoodan Yagna Committee appointed under Section 4 of Bihar Bhoodan Yagna Act, 1954 (Bihar Act XXII of 1954) do hereby declare the following villages Tolas (part villages) described in column No. 3 appertaining to revenue village described in column No.2 whose thanas, anchal and district are described in column No.5 and boundary in column No.6 of the Schedule hereto annexed as Gramdan village with effect from.....:

Sl.

Revenue villages

Declared Gramdan villages, tola, part village

Thana No.

Full address

Boundary

Thana

Anchal

District

North

South

East

West

1

2

3

4

5

6

7

8

9

10

1.

Charghara

Charghara

27

Chakai

Chakai

Monghyr

Meunlain village

Nawada village

Village Mehlani

Road

2.

Keluadih

Keluadih

25

?

?

?

Chhirpathar

Bhootha River

Village Chhata

Village Bandarbhagwa

3.

Behra

Behra

49/2

?

?

?

Keehua Village

Dnamna Village

Moohan

Village Chibra

4.

Salaiya

Salaiya

25

?

?

?

Nala

Kenbanma

Nala

Bagha Pathar

5.

Dhawa Tanr

Rama Tanr

46

?

?

?

Dhanwa Tanr

Road

Forest

Chandramandi

6.

Tetria

Jamua

25

?

?

?

Gondi Tarn

River

River

Road

7.

Dhamniya

Basmania

25

?

?

?

River

Hill

Road

Kali Mandap

8.

Charari

Thakur Mahdar

24

?

?

?

Kalwa River

Urwa River

Urwa village

Pathar Pahri

9.

Sahiya

Adibasi Tola

1/43

Jhajha

Jhajha

?

Nala

Simrabandh

Sahiya

Forest

10.

Porsil

Porsil

3

?

?

?

Hill

Kathaulia

Parsa

Hill

11.

Bangawan

Sanghra

1/42

?

?

?

Bangama

Jamui

Jogia

KenuaTanr

12.

Jamni

Jamni

1/40

?

?

?

Sanghara

River

Bandh

KenuaTanr

13.

Bai la

Panchruchki

1

?

?

?

Barakol

Road

Bhairohur

Forest

14.

Tithin Chak

Tinhin Chak

3/72

?

?

?

River

Hill

Hill

River

15.

Jogia Tilha

Jogia Tilha

1/41

?

?

?

Road

River Manyara

Chiryandih

Road

16.

Paigaha

Purbi tola

1/48

?

?

?

Burhi Khaat

Road

Forest

School

(iii)

Notification No. S.O.214, dated the 8th February, 1975-Published in Bihar Gazette Extraordinary, dated 8th February, 1975.-In exercise of the Powers conferred by Section 6 of the Bihar Gramdan Act, 1965 (Bihar Act IV of 1966) read with sub-rule (5) of Rule 6 of the Bihar Gramdan Rules, 1966, I, Baleshwar Singh, to whom the power has been delegated under the Bihar Gramdan Act, 1965 (Bihar Act IV of 1966) by the Chairman of the Bihar Bhoodan Yagna Committee appointed under Section 4 of Bihar Bhoodan Yagna Act, 1954 Bihar Act XXII of 1954) do hereby declare the following villages/tolas (part of villages) described in column 2 appertaining to revenue village described in column 2 whose Thana, Anchal and District are described in column 5 and boundary in column 6 of the Schedule hereto annexed as Gramdan village:-

Serial No.

Revenue village

Declared Gramdan village/ total or pert

Thana No.

Full address

Boundary

Thana

Anchal

District

1

2

3

4

5

6

1.

Narwan

Narwan

88

Fatwa

Fatwa

Patna

N.- AkhariaS.-KhanpuraE.-ShrirampurW.-Shripatpur

2.

Narwan

Naginapuri

88

Fatwa

Fatwa

Patna

N.-ChaksuratS.-ShripatpurE.-Kararua riverW.-Dariapur

3.

Shrirampur

Shrirampur

89

Fatwa

Fatwa

Patna

N.-AkhariaS.-MohiuddinpurE.-SarwahanpurW.-Narwan

4.

Khanpura

Khanpura

90

Fatwa

Fatwa

Patna

N.-NarwanS.-MohiuddinpurE.-ShrirampurW.-Bujurg

(iv)

Notification No. 1371, dated 25th May, 1974-Published in Bihar Gazette, Extraordinary, dated 3rd June, 1974.-In exercise of the powers conferred by Section 28 of the Bihar Gramdan Act, 1965 (Bihar Act

4 of 1966

) as amended by Bihar Ordinance No. 47 of 1974 the Governor of Bihar is pleased to empower the following Gram Sabha to exercise all powers, duties and functions of Gram panchayats established under Panchayat Raj Act, 1947 (Bihar Act VII of 1948) within the limits of their respective jurisdictions:-

TABLE

Sl. No.

Revenue village

Declared Gramdan village

Thana No.

Full address

Boundary

Police station

Anchal

Panchayat

District

1

2

3

4

5

6

7

8

9

1.

Gainaur

Munitol

229

Bisfi

Bisfi

Bajrah

Madhubani

N.-BajrahaS.- NahasE.- SimriW.- Parsani

2.

Gainaur

Purwari tola

229

?

?

?

?

N.-Local Board RoadS.-RupauliE.-SimriW.- Nointol

3.

Madhopur

Madhopur

469

Muzaffarpur Sadar

Mushari

Saiha

Muzaffarpur

N.-BaikunthpurS.-Gopalpur Bishunpur Lalla,E. -

Mahamudpur, Badal, Darha, Chasal and Baikunthpur

No.2W.-Jalalpur

4.

Susta

Susta

286

Muzaffarpur Sadar

Mushari

Sherpur

Muzaffarpur

N.-RatwaraS.-Madhopur SustaE.-Manjholi

DharmdasW.-Chakahmad Sisai.

5.

Khairi Banka

Dulla

242

Benipatti

Bisfi

Khaira Banka

Madhuabani

N. & S.-Khairo Banka

6.

Khairi Banka

Bakhuri

241

?

?

?

?

E.-MajpandoIW.-BhagautiN.-DulhaS.-PuaritolaE.-Nawratan

tolIW.-Bhagauti

(v)

Notification No. 1594/LR dated 24th October, 1981-Published in Bihar Gazette Extraordinary No. 1121, dated October 24, 1981.-In exercise of the powers conferred by Section 28 of Bihar Gramdan Act, 1965 (Bihar Act 4 of 1966

) the Governor of Bihar is pleased to empower the following Gram Sabha to exercise all powers duties and functions of Gram Panchayats established under Bihar Panchayat Raj Act, 1947 (Bihar Act VII of 1948) within the limits of their respective Jurisdiction:-

Sl. No.

Revenue Village

Declared Gramdan Village

Thana No.

Police Station

Anchal

Panchayat

Dist.

Boundary

1

2

3

4

5

6

7

8

9

1.

Dumarmoh

Dumarmoh

3

Jhajha

Jhajha

Borwa

Monghyr

N-RoadS-KowakoleE-DaryoW-Fatahpur

2.

Bhangdar

Madhua

1

?

?

Sugwa Uran

?

N-RoadS-Village DomaiE-Chhaupa RiverW-Jor

3.

Borua

Borua

3/68

?

?

Boura

?

N-KarmaS-Gondu GhatE-RamdihW-Siker Dih

4.

Sahiya

Jogiyatilah

1/41

?

?

Sohiya tilah

?

N-RoadS-Monipura RiverE-Choria DihW-Road

5.
Dhagna
Khairan
2/8
Jhajha
Jhajha
Dhagna
?
N-Karhara RiverS-Baghara JorE-Katabjor TolaW-Road

6.
Kewala
Birajpur
29
Chakaia
Chakaia
Kewala
?
N-DhamaniaS-BaghmaraE-Noniya ToriW-Keswa Jor

7.
Chakia
Ghorma
24
Chakia
Chakia
Chakia
?
N-MahuliyaS-JhagrudiE-HarchandihW-Gora-Tor

8.
Kowale
Kakoria
27
Chakia
Chakai
Kewala
?
N-RiverS-RiverE-ForestW-Forest

9.
Kernger
Chandramadih
47
Chakia
Chakia
Kernger
?
N-NawadaS-SagarnidihE-Dhawa JorW-Baskijor

10.
Bamdah
Keluadih
25
Chakia
Chakia

Bamdah

?

N-Jheer stoneS-Bhutha RiverE-ChhatgawanW-Bander

Bhagwa

11.

Sherpur

Sherpur

283

Muzaffarpur

Musahri

Narayanpur Ananta

Muzaffarpur

N-Bela MisanpurS-MajhauriaE-Narayanpur

AnantW-Ratware Atardh

12.

Mithanpur Lala

Mithanpur Lala

410

Muzaffarpur Sadar

Musahri

Kanhaul Bela

?

N-ChakavoluS-SherpurE-Kanhaul BishundiW-Satpura

13.

Dumari mohammadpur Mubarak

Dumriurf Mohammadpur Mobarak

775

Muzaffarpur Sadar

Musahari

Budhnagara

Muzaffarpur

N-Budhanagara Ragho, Mankipur BudhnagarS-Narauli

SenE-AtharW-Manika

14.

Moninpur

Moninpur

473

?

?

Budhnagara

?

N-ManikaS-ManikaE-Budhnagara JagannatW-Manika

15.

Budhnagara Ragho

Budhnagara Ragho

700

Musahari

Musahri

Budhanagara

?

N-ManikpurS-Manika Bishunpur ChandE-HusainpurW-Manika

Bishunpur Chand

16.

Jowalpara

Laknaur

248/2

Rupauli

Rupauli

Mahabala

Purnea

N-V. C. CanalS-GowalparaE-Unmetteled

RoadW-Unmetteled Road

17.

Madapur Choube

Mandapur Choube

358

Muzaffarpur Sadar

Musahri

Madhubani

?

N-Patahi and Bajipura

KodariaS-KareunadihE-MadubaniW-Pakohi

18.

Bastpur

Kokat

668

Bahadurpur

Bahadurpur

Basatpur

Darbhanga

N-BiooniS-UghraE-DargahpurW-Basatpur

19.

Madhuban

Prem Nagar

206

Kisanganj

Kisanganj

Madhuban

Saharsa

N-MohanpurS-Boarder GorparW-Madhuban Western

TolaE-Bishanpur

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Translation